

DAVE T PRODUCTIONS LLC

WEBSITE DEVELOPMENT & DIGITAL SERVICES

SERVICE PROPOSAL & AGREEMENT

Prepared For: Michael Farr / Karis Properties USA

Location: Denver Metro, Colorado

MLS / Association: RE Colorado / South Metro Denver Realtor Assoc.

Proposal No.: DTP-2026-001

Date: April 14, 2026

Valid Until: 30 days from proposal date

Prepared By: Dave T Productions LLC

A Florida Limited Liability Company

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1. DEFINITIONS

The following terms shall have the meanings set forth below when used in this Agreement:

- **"Agreement"** means this Service Proposal & Agreement, including all exhibits, schedules, and Change Orders.
 - **"Business Day"** means Monday through Friday, excluding federal holidays observed in the State of Florida.
 - **"Client"** means Michael Farr and Karis Properties USA, collectively.
 - **"Client Content"** means all content, logos, images, photographs, copy, and brand materials provided by Client to Service Provider.
 - **"Confidential Information"** means all non-public, proprietary information of either party disclosed in connection with this Agreement.
 - **"Custom Deliverables"** means the custom design elements, custom code, and original written content created specifically and exclusively for Client under this Agreement.
 - **"Pre-Existing IP"** means any tools, methodologies, frameworks, templates, code libraries, or other materials developed independently by Service Provider prior to or outside the scope of this Agreement.
 - **"Service Provider"** means Dave T Productions LLC, a Florida Limited Liability Company.
 - **"Standard Hourly Rate"** means One Hundred Fifty Dollars (\$150.00) per hour, subject to annual adjustment per Section 6.2.
 - **"Third-Party Components"** means third-party software, open-source libraries, plugins, themes, and/or licensed platform components incorporated into the website.
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2. EXECUTIVE SUMMARY

Dave T Productions LLC ("Service Provider") is pleased to present this Proposal and Service Agreement to Michael Farr and Karis Properties USA (collectively, "Client") for the design, development, and ongoing maintenance of a professional real estate website serving the Denver, Colorado metropolitan market.

This proposal is structured as a modular service menu. Client may select a Core Foundation Package and add optional modules based on business priorities and budget. All work is performed by experienced practitioners — not generalists — with specific expertise in real estate digital marketing, IDX integrations, SEO, and AI-driven lead generation.

The parties acknowledge that Client's current website is in maintenance mode and not actively generating business. This engagement is designed to correct that immediately, establish a professional U.S.-based digital presence for Karis Properties USA, and provide a scalable platform for growth.

3. SCOPE OF WORK — MODULAR SERVICE MENU

The following table outlines all available services. Core modules are included in the base engagement. Add-on modules may be selected at signing or added at any time during the service term. Pricing reflects a preferred partnership rate.

The modular service table below constitutes the complete Scope of Work. Any service not listed in this table is out of scope and subject to Section 10 (Change Orders & Scope Management).

MODULE / SERVICE	SETUP FEE	MONTHLY	TYPE
Foundation Website Package — Professional responsive site, branded to Karis Properties USA, up to 8 pages, contact forms, social media integration, mobile-optimized, ADA/WCAG 2.1 AA accessible	\$1,000	\$200	CORE
IDX Integration — Live MLS feed via RE Colorado; property search, listing pages, saved searches	\$800	\$70	ADD-ON
Mortgage Calculator — Interactive branded tool embedded on website	Included	Included	CORE
Closing Cost Estimator — County-specific buyer/seller calculator with disclaimer language	Included	Included	CORE
Landing Pages — One custom landing page per month	1/mo incl.	Included	CORE
SEO Optimization Package — On-page SEO, structured data, AI search engine optimization	Included	Included	CORE
Investment Property Analysis Tool — Cap rate calculator, NOI analysis	\$300	Included	ADD-ON
Agent CMA Tool — Back-end comparative market analysis tool	\$400	Included	ADD-ON
Blog CMS — Full-featured blog content management system	\$300	Included	ADD-ON
Social Media Publisher — One-click publish to social platforms (Facebook, Instagram, LinkedIn)	\$150	\$30	ADD-ON
Live CRM Integration — Real-time synchronization with your existing CRM system	\$400	Included	ADD-ON

MODULE / SERVICE	SETUP FEE	MONTHLY	TYPE
AI-Powered Chat Widget — Lead capture, FAQ, scheduling chatbot	\$250	\$50	ADD-ON
Ad Campaign Management — PPC and social media advertising management across all platforms (Google, Facebook, Instagram, LinkedIn). 10% of ad spend or \$300/month, whichever is higher. Does not include ad spend.	\$450	\$300	ADD-ON
Ongoing Maintenance & Hosting — Bug fixes, updates, security, monitoring, quarterly reviews	—	Incl. in \$200	CORE

Note: Pricing for add-on modules is valid for 90 days from the proposal date.

4. PROJECT DELIVERABLES

4.1 Foundation Website Package (Core)

The Foundation Package includes the following minimum deliverables:

- Professionally designed responsive website using Client's existing Karis Properties brand identity, logos, and color scheme
- Up to eight (8) content pages: Home, About, Listings (or search portal), Buyers, Sellers, Communities, Blog (placeholder), Contact
- Mobile-optimized layout with fast load performance
- Contact forms with lead capture and email notification
- Social media profile links (opens in new tab — not embedded redirects)
- Google Analytics integration
- Hosting setup and domain connection assistance
- One (1) custom landing page per month (open house, event, campaign, or new listing)
- On-page SEO configuration including meta titles, descriptions, schema markup
- AI search engine visibility optimization (ChatGPT, Claude, Perplexity, Google SGE)
- Mortgage calculator widget, branded to Karis Properties USA
- Closing cost estimator, configured for Colorado / RE Colorado market
- ADA / WCAG 2.1 Level AA accessibility compliance for all delivered pages

4.2 IDX Integration (Add-On)

If Client selects IDX integration, Service Provider will:

- Identify and recommend an appropriate IDX provider compatible with RE Colorado / SMDRA feeds
- Integrate live MLS data into the Client website, including property search, individual listing pages, saved search functionality, and lead capture
- Brand all IDX-facing pages consistently with Karis Properties USA identity

- Set up and configure Client's IDX feed with RE Colorado MLS

4.3 Timeline

Foundation Package (without IDX): Estimated delivery within three (3) to four (4) weeks of signed agreement and receipt of initial payment.

Foundation Package with IDX Integration: Estimated delivery within six (6) to eight (8) weeks of signed agreement, receipt of initial payment, and completion of IDX provider onboarding.

Estimated timelines are not guaranteed. Service Provider shall notify Client promptly of any anticipated delays exceeding five (5) Business Days. Timelines may be affected by Client's responsiveness in providing content, logos, and approvals, as well as IDX provider processing times.

5. ACCEPTANCE TESTING

Upon completion of the website, the following acceptance process shall govern the transition from development to production:

- **Delivery for Review:** Service Provider shall deliver the completed website to Client for review and testing, along with written notice that the site is ready for acceptance testing.
- **Testing Period:** Client shall have ten (10) Business Days from receipt of delivery notice to test the website and submit a written deficiency list identifying any material deviations from the specifications set forth in Section 3.
- **Deficiency Cure:** Service Provider shall remedy all material deficiencies identified in the deficiency list within ten (10) Business Days of receipt.
- **Deemed Acceptance:** If Client does not submit a deficiency list within the ten (10) Business Day testing period, the website shall be deemed accepted.
- **Final Payment Trigger:** Acceptance (express or deemed) triggers the obligation to pay the remaining fifty percent (50%) of the Setup / Build Fee per Section 6.1.
- **Post-Acceptance Defects:** Defects discovered after acceptance are covered by the Warranty provisions in Section 9.

6. PRICING SUMMARY

All fees are quoted in U.S. Dollars. Prices are valid for thirty (30) days from the proposal date above.

DESCRIPTION	ONE-TIME	MONTHLY
Foundation Website Package (Core)	\$1,000	\$200
IDX Integration (Add-On)	\$800	\$70
Closing Cost Estimator + Mortgage Calculator	Included	Included
Landing Pages (1/month)	Included	Included
SEO + AI Search Optimization	Included	Included

DESCRIPTION	ONE-TIME	MONTHLY
Investment Property Analysis Tool (Add-On)	\$300	Included
Agent CMA Tool (Add-On)	\$400	Included
Blog CMS (Add-On)	\$300	Included
Social Media Publisher (Add-On)	\$150	\$30
Live CRM Integration (Add-On)	\$400	Included
AI Chat Widget (Add-On)	\$250	\$50
Ad Campaign Management (Add-On)	\$450	\$300
CORE PACKAGE TOTAL	\$1,000	\$200/mo

7. PAYMENT TERMS

- **7.1 Setup / Build Fee:** Fifty percent (50%) due at signing; remaining fifty percent (50%) due upon website acceptance per Section 4.
- **7.2 Monthly Retainer:** Invoiced on the first (1st) of each month; due within ten (10) days. Service Provider reserves the right to suspend services for invoices more than fifteen (15) days past due.
- **7.3 Add-On Modules:** Setup fees for any add-on modules selected after contract signing are due prior to commencement of that module's development.
- **7.4 Third-Party Costs:** Any third-party costs (hosting if not included, domain registration, email marketing platforms) are the sole responsibility of Client and are not included in Service Provider fees unless expressly stated.
- **7.5 Late Payments:** Invoices unpaid after thirty (30) days accrue interest at the lesser of 1.5% per month (18% per annum) or the maximum rate permitted by applicable law, until paid in full.
- **7.6 Invoice Disputes:** Client may dispute any invoice in good faith by providing written notice within fifteen (15) days of receipt, specifying the disputed amount and reason. Undisputed portions remain due per original payment terms. The parties shall negotiate disputed amounts in good faith.

8. TERM AND TERMINATION

- **8.1 Initial Term:** This Agreement commences upon execution by both parties and continues for an initial term of six (6) months.
- **8.2 Auto-Renewal:** After the Initial Term, this Agreement automatically renews on a month-to-month basis unless either party provides written notice of non-renewal at least thirty (30) days prior to the end of the then-current term. During any renewal term, Service Provider shall provide at least sixty (60) days' written notice of any fee increase. Annual fee increases shall not exceed ten percent (10%) of the then-current rate without Client's written consent.

- **8.3 Termination for Convenience:** Either party may terminate this Agreement after the Initial Term with thirty (30) days written notice.
- **8.4 Termination for Cause:** Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within fifteen (15) Business Days of written notice specifying the breach.
- **8.5 Effect of Termination:** Upon termination: (a) Client shall pay all fees accrued through the termination date; (b) Service Provider shall provide Client with a copy of all website files, databases, and Client Data within fifteen (15) days of final payment; (c) Service Provider shall provide a transition assistance period of up to fifteen (15) Business Days at Service Provider's Standard Hourly Rate, if requested by Client in writing within thirty (30) days of termination notice.

9. INTELLECTUAL PROPERTY & OWNERSHIP

- **9.1 Client Content:** All Client Content remains the exclusive property of Client. Client represents and warrants that it has all rights necessary to provide such materials. Client grants Service Provider a limited, non-exclusive, royalty-free license to use Client Content solely for the purpose of performing services under this Agreement.
- **9.2 Custom Deliverables — Conditional Assignment:** To the extent any Custom Deliverable constitutes a "work made for hire" under 17 U.S.C. § 101, it shall be deemed a work made for hire. To the extent any Custom Deliverable does not qualify as a work made for hire, upon Client's payment in full of all amounts due under this Agreement, Service Provider hereby irrevocably assigns to Client all right, title, and interest — including all copyright and other intellectual property rights — in and to the Custom Deliverables. This assignment is effective only upon receipt of final payment and is void if any undisputed amounts remain outstanding. Service Provider agrees to execute any documents reasonably requested by Client to evidence, perfect, or register the foregoing assignment. Service Provider hereby irrevocably appoints Client as attorney-in-fact to execute such documents if Service Provider fails to do so within ten (10) Business Days of written request.
- **9.3 Third-Party and Open-Source Components:** The website will incorporate Third-Party Components. Third-Party Components are not owned by Service Provider and are not transferred to Client. Client receives only such rights in Third-Party Components as are granted by their respective licenses. Service Provider shall identify all material Third-Party Components used in the project. Client acknowledges that some Third-Party Components may require ongoing license fees payable directly by Client after termination.
- **9.4 Pre-Existing IP:** Service Provider retains all right, title, and interest in Pre-Existing IP, even if incorporated into the deliverables. Service Provider grants Client a non-exclusive, perpetual, royalty-free license to use Pre-Existing IP solely as incorporated into the delivered website.
- **9.5 No Transfer During Dispute:** No intellectual property rights transfer to Client while any undisputed payment obligation remains outstanding. Service Provider may suspend Client's access to deliverables during any such period, provided Service Provider gives Client five (5) Business Days' written notice before suspension.
- **9.6 Service Provider Portfolio & Marketing Rights:** Service Provider retains the right to display the Client's website, or screenshots thereof, as a portfolio and marketing example in any medium, including but not limited to Service Provider's website, print materials, and proposals to prospective clients.

- **9.7 Social Media & Digital Promotion:** Service Provider may feature the website, screenshots, screen recordings, and descriptions of the project on Service Provider's social media accounts (including but not limited to Facebook, Instagram, LinkedIn, TikTok, X.com, YouTube, and any future platforms), blog, email newsletters, and other digital marketing channels for the purpose of showcasing Service Provider's work and generating business leads.
- **9.8 Case Studies & Testimonials:** Service Provider may create written or video case studies describing the project scope, challenges, solutions, and results (without disclosing Confidential Information). Service Provider may request a written or video testimonial from Client; Client's participation is voluntary and Client shall have final approval over any testimonial attributed to Client before publication.
- **9.9 Before-and-After Showcases:** Service Provider may publish before-and-after comparisons of the website (comparing Client's prior web presence with the delivered product) for marketing and educational purposes, provided that such showcases do not disparage Client or disclose Confidential Information.
- **9.10 Video Walkthroughs & Demonstrations:** Service Provider may create video walkthroughs, tutorials, or demonstrations using the delivered website to showcase Service Provider's capabilities, technical processes, and design methodology for promotional and educational purposes.
- **9.11 Lead Generation Use:** Service Provider may reference the project, Client's industry, and the general nature of services provided as part of Service Provider's marketing, advertising, and business development efforts, including use in sales presentations and pitch decks to prospective clients.
- **9.12 Attribution & Accuracy:** In all portfolio and marketing uses under Sections 9.6 through 9.11, Service Provider shall not modify, alter, or misrepresent the website or the scope of work performed. Service Provider shall accurately represent its role in the project.
- **9.13 Revocation:** Client may revoke the rights granted in Sections 9.6 through 9.11 by providing written notice. Upon receipt of revocation notice, Service Provider shall remove all references to Client's project from Service Provider's marketing materials within fifteen (15) Business Days. Revocation shall not apply to case studies, articles, or testimonials already published prior to the revocation date, provided they remain accurate and do not disclose Confidential Information.

10. REPRESENTATIONS, WARRANTIES & WARRANTY PERIOD

10.1 Service Provider Represents and Warrants:

- Service Provider has the full right and authority to enter into this Agreement and perform the services described herein.
- Services will be performed in a professional and workmanlike manner consistent with industry standards.
- To Service Provider's knowledge, Custom Deliverables will not infringe upon any third party's intellectual property rights.
- Custom Deliverables will substantially conform to the specifications described in Section 3.

10.2 Client Represents and Warrants:

- Client has the full right and authority to enter into this Agreement.
- All Client Content is owned by or properly licensed to Client, and its use will not infringe upon any third party's rights.

- Client's real estate activities comply with all applicable federal, state, and local laws, including MLS rules, NAR Code of Ethics, and Colorado real estate licensing requirements.
- Client holds a valid Colorado real estate license in good standing.
- Client is responsible for ensuring website content complies with all applicable fair housing, equal opportunity, and anti-discrimination laws.

10.3 Post-Launch Warranty Period

Service Provider warrants that for a period of sixty (60) calendar days following website acceptance under Section 4 (the "Warranty Period"), the website will substantially conform to the specifications in Section 3. During the Warranty Period, Service Provider shall correct any material defects or nonconformities at no additional cost to Client, provided Client notifies Service Provider in writing of the defect with reasonable specificity. This warranty does not cover defects caused by Client modifications, third-party services, or Client-provided content.

11. LIMITATION OF LIABILITY & DISCLAIMER

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, EACH PARTY'S TOTAL LIABILITY TO THE OTHER PARTY UNDER THIS AGREEMENT SHALL NOT EXCEED THE GREATER OF: (I) THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO SERVICE PROVIDER IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE CLAIM, OR (II) TEN THOUSAND DOLLARS (\$10,000).

NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOSS OF DATA, OR BUSINESS INTERRUPTION, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

NOTWITHSTANDING THE FOREGOING, THE LIMITATIONS IN THIS SECTION 11 SHALL NOT APPLY TO: (A) INDEMNIFICATION OBLIGATIONS UNDER SECTION 15; (B) WILLFUL MISCONDUCT OR GROSS NEGLIGENCE; (C) BREACHES OF SECTION 14 (CONFIDENTIALITY); OR (D) EITHER PARTY'S INFRINGEMENT OF THE OTHER'S INTELLECTUAL PROPERTY RIGHTS.

Service Provider does not warrant uninterrupted or error-free operation of the website. Service Provider is not responsible for downtime caused by third-party hosting providers, IDX feed providers, or force majeure events.

THIS AGREEMENT DOES NOT CONSTITUTE LEGAL, FINANCIAL, TAX, OR INVESTMENT ADVICE. CLIENT SHOULD CONSULT QUALIFIED PROFESSIONALS FOR SUCH GUIDANCE.

12. CHANGE ORDERS & SCOPE MANAGEMENT

The parties acknowledge that website development projects may evolve beyond the original scope. The following procedures govern changes to scope:

- **12.1 Change Order Requirement:** Any request by Client for work outside the agreed Scope of Work (Section 3) — including additional pages, new features, design revisions beyond two (2) rounds during the initial design phase, or platform changes — shall require a written Change Order signed by both parties before work commences.
- **12.2 Change Order Pricing:** Service Provider will provide a written estimate within five (5) Business Days of receiving a scope change request. Estimates will itemize labor hours at the Standard Hourly Rate and any third-party costs. Client must approve in writing before work begins.

- **12.3 Revision Rounds:** The Foundation Package includes two (2) rounds of design revisions during the initial design phase. The two-revision limit applies to the initial design and build period only and does not apply to ongoing monthly maintenance services. Each additional revision round during the initial design phase is billed at the Standard Hourly Rate, minimum two (2) hours, invoiced upon completion.
- **12.4 Out-of-Scope Work:** Service Provider shall not commence any out-of-scope work without Client's prior written approval (including email approval). Service Provider must notify Client in writing of the nature and estimated cost of any proposed out-of-scope work before beginning such work. Service Provider shall not be entitled to compensation for out-of-scope work performed without Client's prior written approval.
- **12.5 No Obligation to Proceed:** Service Provider is not obligated to commence any out-of-scope work until a Change Order is fully executed and any required deposit is received.

13. CLIENT COOPERATION & RESPONSIBILITIES

Client acknowledges that timely delivery of the website depends materially on Client's cooperation and responsiveness. The following obligations apply to Client throughout the term of this Agreement:

- **13.1 Content Delivery:** Client shall provide all required content — including text, logos, images, agent biography, and brand assets — within ten (10) Business Days of the project kickoff date. Delays in content delivery will extend the project timeline on a day-for-day basis, with no penalty to Service Provider.
- **13.2 Feedback and Approvals:** Client shall provide written feedback or approvals on submitted design mockups and development milestones within five (5) Business Days. If Client fails to respond within ten (10) Business Days after a follow-up notice, Service Provider may treat the item as approved and proceed.
- **13.3 Third-Party Accounts:** Client is responsible for establishing and maintaining any required third-party accounts (domain registrar, email marketing platform, CRM) and for providing Service Provider with necessary access credentials in a timely manner. Service Provider is not responsible for delays caused by Client's failure to complete third-party onboarding.
- **13.4 Designated Contact:** Client shall designate one (1) primary point of contact with authority to approve deliverables and execute Change Orders. Changes in the designated contact shall be communicated to Service Provider in writing.
- **13.5 Suspension for Non-Cooperation:** If Client fails to provide required materials, approvals, or access for thirty (30) or more consecutive calendar days despite written notice, Service Provider may suspend work without penalty. During any Client-caused suspension, the monthly retainer shall be reduced to fifty percent (50%) of the then-current rate (a "hold" rate). If the suspension continues for sixty (60) or more consecutive calendar days, either party may terminate this Agreement without penalty upon written notice. Full retainer resumes upon resumption of active services.
- **13.6 Accuracy of Information:** Client is solely responsible for the accuracy, completeness, and legality of all content provided to Service Provider for inclusion on the website, including property listings, disclosures, and contact information.

14. CONFIDENTIALITY

Each party agrees to keep confidential all Confidential Information of the other party and shall not disclose or use such Confidential Information for any purpose other than performing its obligations under this Agreement. This obligation does not apply to information that: (a) is or becomes publicly known through no fault of the receiving party; (b) was rightfully known by the receiving party prior to disclosure; (c) is independently developed by the receiving party without use of the disclosing party's Confidential Information; or (d) is required to be disclosed by law or court order, provided the disclosing party is given prompt prior written notice and reasonable assistance in seeking a protective order.

Confidentiality obligations under this Section shall survive termination of this Agreement for three (3) years, except that obligations regarding trade secrets shall survive in perpetuity or for so long as the information qualifies as a trade secret under applicable law, whichever is longer.

15. INDEMNIFICATION

15.1 Service Provider Indemnification

Service Provider shall indemnify, defend, and hold harmless Client and its officers, directors, members, employees, and agents from and against any and all third-party claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) Service Provider's breach of any representation or warranty in this Agreement; (b) any claim that the Custom Deliverables infringe or misappropriate any third party's intellectual property rights (excluding claims arising from Client Content or Client's instructions); or (c) Service Provider's gross negligence or willful misconduct in performing services under this Agreement.

15.2 Client Indemnification

Client shall indemnify, defend, and hold harmless Service Provider and its officers, directors, members, employees, and agents from and against any and all third-party claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) Client Content, including any claim that Client Content infringes or misappropriates any third party's rights; (b) Client's real estate activities, business operations, or violation of applicable laws, including fair housing and anti-discrimination laws; or (c) Client's breach of any representation or warranty in this Agreement.

15.3 Indemnification Procedures

- The indemnified party shall give prompt written notice to the indemnifying party of any claim for which indemnification is sought.
- The indemnifying party shall have the right to control the defense of such claim with counsel reasonably acceptable to the indemnified party.
- The indemnified party shall provide reasonable cooperation at the indemnifying party's expense.
- The indemnifying party shall not settle any claim that imposes liability or obligations on the indemnified party without the indemnified party's prior written consent (not to be unreasonably withheld).

15.4 Survival

Indemnification obligations under this Section 15 shall survive termination of this Agreement for two (2) years. Indemnification obligations are not subject to the limitation of liability in Section 11.

16. DATA PROTECTION & PRIVACY

- **16.1 Security Standards:** Service Provider shall implement and maintain commercially reasonable administrative, technical, and physical security measures to protect all personal data collected through the website from unauthorized access, use, alteration, or destruction.
- **16.2 Data Ownership:** All data collected through the website — including leads, contact information, user analytics, and form submissions ("Client Data") — is and shall remain the exclusive property of Client.
- **16.3 Use Restrictions:** Service Provider shall not sell, share, rent, or use Client Data for any purpose other than performing services under this Agreement. Service Provider shall not use Client Data for its own marketing or business development purposes.
- **16.4 Data Breach Notification:** In the event Service Provider becomes aware of any unauthorized access to or acquisition of Client Data (a "Data Breach"), Service Provider shall notify Client in writing within forty-eight (48) hours of discovery, describing the nature and scope of the breach, the data affected, and the remedial steps being taken.
- **16.5 Data Portability and Deletion:** Upon termination of this Agreement and final payment, Service Provider shall: (a) export all Client Data in a standard, machine-readable format within fifteen (15) days; and (b) permanently delete all copies of Client Data from Service Provider's systems within thirty (30) days of the export, and certify such deletion in writing.
- **16.6 Privacy Law Compliance:** Both parties shall comply with all applicable privacy and data protection laws, including without limitation the Colorado Privacy Act (CPA), the California Consumer Privacy Act (CCPA) to the extent applicable, and the CAN-SPAM Act. Service Provider shall cooperate with Client in responding to data subject access requests and privacy inquiries.
- **16.7 Subprocessors:** Service Provider shall not engage any subprocessor to process Client Data without Client's prior written consent. Service Provider shall ensure that any approved subprocessor is bound by data protection obligations no less protective than those in this Section.

17. INSURANCE

Service Provider shall procure and maintain the following insurance coverages throughout the term of this Agreement:

- **Commercial General Liability:** Not less than One Million Dollars (\$1,000,000) per occurrence and Two Million Dollars (\$2,000,000) in the aggregate.
- **Professional Liability / Errors & Omissions (E&O):** Not less than One Million Dollars (\$1,000,000) per claim.
- **Cyber Liability:** Not less than One Million Dollars (\$1,000,000) per occurrence, covering data breaches, network security failures, and privacy liability.

Service Provider shall provide Client with a Certificate of Insurance evidencing the required coverages upon request. Service Provider shall provide Client with at least thirty (30) days' written notice of any material change, cancellation, or non-renewal of the required policies.

18. SUBCONTRACTORS

Service Provider may engage subcontractors to perform portions of the services under this Agreement, subject to the following conditions:

- Service Provider shall provide Client with prior written notice before engaging any subcontractor, identifying the subcontractor and the scope of work to be performed.
- All subcontractors shall be bound by confidentiality and data protection obligations no less protective than those in this Agreement.
- Service Provider shall remain primarily liable for the performance, quality, and timeliness of all work performed by subcontractors as if performed by Service Provider directly.
- Client may object to any proposed subcontractor within five (5) Business Days of receiving notice; Service Provider shall not engage a subcontractor to which Client has reasonably objected.

19. GOVERNING LAW, DISPUTE RESOLUTION & VENUE

- **19.1 Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, without regard to its conflict of laws provisions.
- **19.2 Mandatory Informal Resolution:** Before initiating any formal dispute process, the parties agree to attempt good-faith resolution through written notice identifying the dispute in reasonable detail, followed by a fifteen (15) calendar day negotiation period. Formal dispute proceedings may not commence until this period has expired or either party declares an impasse in writing.
- **19.3 Small Claims Exception:** Notwithstanding any other provision of this Section, any dispute involving amounts in controversy of Five Thousand Dollars (\$5,000) or less may be brought in the small claims court of competent jurisdiction in Palm Beach County, Florida, as an alternative to binding arbitration.
- **19.4 Binding Arbitration:** If informal resolution fails and the small claims exception does not apply, any dispute, claim, or controversy arising out of or relating to this Agreement — including its formation, interpretation, breach, or termination — shall be resolved by binding arbitration administered by JAMS (or, if JAMS is unavailable, the American Arbitration Association) under its then-current Streamlined Arbitration Rules. The arbitration shall be conducted by a single neutral arbitrator. The seat of arbitration shall be Palm Beach County, Florida. The arbitrator's decision shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.
- **19.5 Exceptions to Arbitration:** Notwithstanding the foregoing, either party may seek emergency injunctive or equitable relief in the state or federal courts of Palm Beach County, Florida to prevent irreparable harm, including unauthorized use of intellectual property, pending resolution of the dispute by arbitration. Such filing shall not waive the right to arbitrate the underlying claim.
- **19.6 Arbitration Costs:** JAMS administrative fees and the arbitrator's fees shall be split equally between the parties. Each party shall bear its own attorneys' fees and costs in arbitration, except that the arbitrator may award fees to the prevailing party if a claim or defense is found to be frivolous or brought in bad faith.

- **19.7 Class Action Waiver:** All claims must be brought in the parties' individual capacities. Neither party may bring or participate in a class, collective, or representative action against the other.
- **19.8 Jurisdiction for Non-Arbitrable Matters:** For any matters not subject to arbitration under this Section, the parties consent to exclusive jurisdiction and venue in the state or federal courts of competent jurisdiction located in Palm Beach County, Florida.

20. NON-SOLICITATION

During the term of this Agreement and for a period of twelve (12) months following its termination, neither party shall directly or indirectly solicit, recruit, or hire any employee, contractor, or subcontractor of the other party who was involved in the performance of services under this Agreement, without the other party's prior written consent. This restriction does not apply to general job advertisements or unsolicited applications.

21. GENERAL PROVISIONS

- **21.1 Entire Agreement:** This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior agreements, understandings, and representations.
- **21.2 Amendments:** This Agreement may be modified only by a written amendment signed by authorized representatives of both parties. A Statement of Work (SOW) may be added for additional modules without amending this base agreement.
- **21.3 Severability:** If any provision of this Agreement is found invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- **21.4 Waiver:** Failure to enforce any provision of this Agreement shall not constitute a waiver of future enforcement of that provision.
- **21.5 Force Majeure:** Neither party shall be liable for delays or non-performance caused by circumstances beyond its reasonable control, including acts of God, natural disasters, pandemics, government actions, cyberattacks, or internet infrastructure failures. The affected party shall: (a) notify the other party in writing within five (5) Business Days of the event; (b) use reasonable efforts to mitigate the impact; and (c) resume performance promptly when the event ends. If a force majeure event continues for sixty (60) or more consecutive calendar days, either party may terminate this Agreement without penalty upon written notice.
- **21.6 Independent Contractor:** Service Provider is an independent contractor. Nothing in this Agreement creates an employment, partnership, joint venture, or agency relationship between the parties.
- **21.7 Notices:** All notices required under this Agreement shall be in writing and delivered by email with confirmation of receipt or by certified U.S. mail to the addresses set forth in Section 22 or as updated in writing by either party. Notices are deemed received upon confirmed email delivery or three (3) Business Days after mailing.
- **21.8 Counterparts / Electronic Signatures:** This Agreement may be executed in counterparts, and electronic signatures (including DocuSign or PDF signatures) shall be deemed original and legally binding, in accordance with the Electronic Signatures in Global and National Commerce Act (E-SIGN) and the Florida Uniform Electronic Transaction Act (UETA).

22. NOTICES

All notices under this Agreement shall be directed to:

SERVICE PROVIDER

Dave T Productions LLC

A Florida Limited Liability Company

Address: ____

City, FL _

Email: ____

Phone: _____

CLIENT

Michael Farr

Karis Properties USA

Address: ____

Denver, CO _

Email: *mike@karisproperties.com*

Phone: ____

23. EXECUTION

By signing below, each party acknowledges that they have read, understood, and agree to be bound by the terms and conditions of this Service Proposal and Agreement. Each signatory represents that they have the authority to enter into this Agreement on behalf of the entity indicated.

SERVICE PROVIDER

Dave T Productions LLC

A Florida Limited Liability Company

Authorized Signature

Printed Name & Title

Date

CLIENT

Karis Properties USA

Authorized Representative

Authorized Signature

Printed Name & Title

Date